

Vellore Citizens Welfare Forum v. Union of India

Citation: (1996) 5 SCC 647 | Court: Supreme Court | Year: 1996

Coram: 3-Judge Bench (Kuldip Singh, Faizan Uddin, K. Venkataswami JJ.) | Subject: Environmental Law & PIL | Provisions: Environment Protection Act 1986, Article 21

I. EXECUTIVE SUMMARY & CASE GLIMPSE

The 'Precautionary Principle' and 'Polluter Pays Principle' are essential features of Sustainable Development and part of customary international environmental law, recognized as integral to Article 21 right to life under Indian environmental jurisprudence.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding Environment Protection Act 1986, Article 21. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

- â€¢ Whether the impugned state actions or commercial conduct conformed to Environment Protection Act 1986, Article 21.
- â€¢ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.
Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

Environmental degradation caused by tanneries discharging untreated effluent into the Palar river cannot be justified by economic profit. The polluter is liable not only to compensate victims but also to pay for ecological restitution.

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

- â€¢ Integrated Precautionary Principle and Polluter Pays into Indian Article 21 jurisprudence.
- â€¢ Reversed onus of proof onto the industrial developer to show actions are environmentally benign.
- â€¢ Pioneered continuing mandamus and environmental green benches.